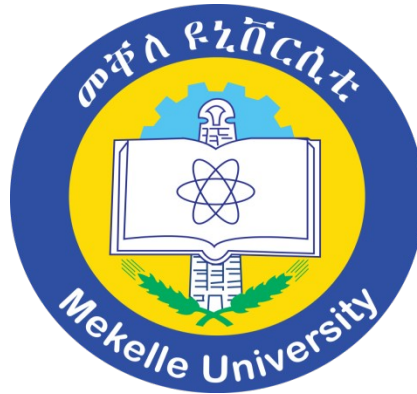


MEKELLE UNIVERSITY

SCHOOL OF LAW



THE RIGHT TO HEALTH v. VS THE RIGHT TO PATENT

A Thesis submitted to Sschool of Llaw in Ppartial ffulfillment of the rrequirement for Bachelor
Degree of law (LLB)

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SCHOOL OF LAW

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A Thesis submitted by: Takele Adamu to the school of Law, January, 2017, in partial fulfilment of the requirements for the (Bachelor Degree of law (LLB)) has been approved by the thesis supervisor Mr Mulu Beyene.

Thesis Supervisor Mr, Mulu Beyene

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ABSTRACT

The question posed in this ~~article-thesis~~ is whether the right to health and patents conflict or co-exist. This question examined from the perspective of accesses to essential medicines focusing on the right to health as set out in the ICESCR and patent standards required by TRIPS agreement. ~~I~~In strict sense, there is no conflict between the right to health and patent because ICESCR and TRIPS agreement do not contain mutually exclusive obligations but there is tension between them. There are a number of ways in which such tensions can be solved, such as through treaty interpretation, If the conflict is not solved through interpretation in that caste he lex superior derogate legi inferior (a superior norm prevail over inferior norm), lex posterior derogate legi priori (a latter expression of state prevail over an earlier expression), and lex specials derogate legi generali(a special norm prevail over general norm. the simplest ways to resolve the tension between the right to health and pharmaceutical patent is lex superior derogate legi priori (the superior nor prevail over inferior norm).The Doctrinal research method is used, so that, relevant legal provisions, books, journals etc. are used.

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List of Acronyms

ACHPR=AFRICAN CHARTER ON HUMAN AND PEOPLES RIGHT

AIDS=ACQUIRED IMMUNE DEFICIENCY SYNDERUM

ART. =ARTICLE

FDRE=FEDERAL DEMOCRATIC REPUBLIC OF ETHIOPIA

GATT=GENERAL AGREEMENT ON TRADE AND TARIFF

HIV=HUMAN IMMUNUE VIRUS

ICESCR=INTERNATIONAL CONVENTION ON ECONOMIC, SOCIAL AND CULTURAL RIGHTS

ICJ=INTERNATIONAL COURT OF JUSTICE

ILC=INTERNATIONAL LAW COMISSION

IPR=INTELLECTUAL PROPERTY RIGHT

TRIPS=TREATY RELATED ON INTELLECTUAL PROPERTY

UDHR=UNVIRSAL DECLARATION OF HUMAN RIGHT

UN=UNITED NATION

WHO=WORLD HEALTH ORGANIZATION

WTO=WORLD TRADE ORGANIZATION

CHAPTER ONE

Introduction

1 Background of the topic

Human rights are inherent to all human beings and are essential for living a life in dignity. One human right that is of utmost importance for dignified life is the right to health, which means it is essential to operate all other human rights and freedoms¹. The right to health explicitly defined for the first time in WHO constitution as a 'state of complete physical, mental and social well-being and not merely the absence of disease or infirmity'². In addition to this, the constitution in its preamble stressed that 'the enjoyment of the highest attainable standards of health is the one of fundamental right of every human being, without any distinction.'³ The definition which is provided by WHO relied by the world. After enshrining this right to health adopted in the legislations of international and regional as well as in national constitution.⁴ UDHR is the first document after the WHO constitution which recognises the right to health as a right, it provided that 'every one is entitled to the standard of living adequate for health and well-being of himself and his family; including medical care'⁵.

While patent is a property right which is granted by sovereign state to the inventor of a novel for 20 years from the filing of the patent application and it excludes others from using and selling it.⁶ Patent for pharmaceutical protection until the half of 20th C not developed in developing countries⁷. However, before the agreement on TRIPS came into force, patent protection for pharmaceutical was introduced in developed countries and TRIPS only strengthened this protection⁸. Pharmaceutical industry needs strong protection of its

¹ International convention on economic, social and cultural right, general comment No 14. the right to highest attainable standard of health (art.12) 11 August 2000 (CESCR).

² constitution of world health organization adopted in the international health conference, New York. 19 June-22 July 1946 (WHO Constitution).

³ Hestermeyer and Hilger, human right and World trade organization, the case of patent and the case of medicines (2008) Oxford University Press. n1 p.113.

⁴ Fact sheet no 31 CHCHR.WHO, 2012.

⁵ International commission on economic, social and cultural right GC NO.14 para.4 2001.

⁶ (The pharmaceutical industry and the patent system) Bruce Lehman, president of international intellectual property institute.

⁷ Hestermeyer, human right and world trade organization (2008) n1p. 29.

⁸ Ibid 29.

product .since cost of research and development of their production are very high and only through patent protection can encourage inventors to develop new medicines .from which the whole society has benefit⁹.

The background and the main developments concerning the relationship between the right to health and pharmaceutical patent begin after the discovery of HIV/AIDS medicine and subsequent patent protection in the first declaration¹⁰ .from this onward it became international issue because TRIPS agreement exclude others from using and sale the drug for 20 years on other hand a lot of people suffered by disease as result of lack of medicines and they can't afford it easily because of the price especially a people who live in developing countries. After one year the government of republic of South Africa enact a law which provide that the minister of health has the power to prescribe conditions for the supply affordable essential medicines in order to protect public health, including compulsory license and parallel import.as result of this pharmaceutical companies sue government of republic of South Africa¹¹.

1.1 Objectives of research

1.1.1 GENERAL OBJECTIVES OF RESEARCH

- To assess the relationship between the right to health and the right patent.

1.1.2 SPECIFIC OBJECTIVES RESEARCH

- To asses, is there any co-existence or conflict between the right to health and the right patent from the perspective to accesses to essential medicines

1.2 Statement of the problem

Do the right to health and the right to patent co-exist or conflict?

1.3 Significance of research

- ✓ it used as reference material in law school

⁹ Carlos M.correa, (ownership of knowledge)the role of the patent in pharmaceutical research and development(2001).

¹⁰World trade organization ,declaration on the TRIPS agreement and public health ,ministerial conference .fourth session .WTO DOC.(2001)after Doha declaration.

¹¹Hestermeyer ,pharmaceutical companies sue south Africa government for violation of TRIPS agreement (1998) NO.1 p.12.

- ✓ It used as an alarm for slept world on the issue of the right to health VS. The right to patent.
- ✓ To earn research degree along with its consequential benefits.

1.4 Scope of the study

The ambit of the study is limited in the right to health from the perspective of access to essential medicines and patent right from the perspective international and regional documents which related to the study.

1.5 Limitation of study

- Lack of sufficient time
- lack of well experience

1.8 Research Methodology

In general the methodology of this study will employ both primary and secondary sources. Addressing relevant human right instruments take first hand in study and also study is supported by real cases. But more focus on library based sources.

1.9 Outline of the thesis (research)

This thesis has the following skeleton, the second chapter deals with the law of patent as it exist totally, concentrating primarily on the provisions relevant to pharmaceutical patent .it present the main characteristic of patent in general peculiarities of pharmaceutical patents and relevant document in general.

And also with the assessment of the right to health and accesses to essential medicines and it analysis the relevant human right instrument as well as findings of esteemed scholars, in order to present the right to access essential medicines as a human right. Following this third chapter deals the relationship between the right to health and the right to patent whether these two different rights does coexist or conflict.

The final chapter present conclusion and possible solutions that settle these unsettled issues.

CHAPTER TWO

2 THE RIGHT TO HEALTH ~~y~~VS. PATENT RIGHT

Human rights are only for human beings and these rights are essential to our ~~life~~ existence. Among these rights the right to health takes ~~a a-part-of lion~~ share. Because without normal health condition we can't exercise other rights, for example the right to education is not exercised without normal health condition because human rights by nature are indivisible or interdependent¹². While there are no specific provisions which govern pharmaceutical patents rather we find it in a subset of patents in the TRIPS agreement, under the TRIPS agreement there are provisions which govern the right to patent and it gives exclusive rights to patentees.

2.1 Definition of the right to health

There is no single or unique definition of the right to health rather we can infer it from its character's or from its determinant factors

2.1.1 The key aspect of the right to health

We frequently associate the right to health with access to health care and buildings of hospitals. But it is a wide right and extended further. It included a lot of factors that can help us to lead a healthy life. The committee on economic, social and cultural rights is responsible for monitoring the international covenant on economic, social and cultural rights. It put different factors that are necessary to the right to health such as the right to food, the right to water, the right to shelter, the right to a clean working environment, the right to health, contain freedoms, gender equality and the right to obtain and receive health-related information¹³.

These freedoms include the right to be free from non-consensual medical treatment such as medical experiments and research or forced sterilization and to be free from torture and other cruel¹⁴. The right to health is not limited by these rights it also contains some entitlements such as access to essential medicines, the right to prevention, treatment and control of diseases, good health services facilitates without any discrimination but these facilities and services

¹² Vienna declaration and programme of action (A/ conf.157/23). adopted by world conference on human rights, held in Vienna, 14-25 June 1993.

¹³ International convention on economic, social and cultural rights, The covenant was adopted by the United Nations General Assembly in its resolution 2200A (XXXI) of 16 December 1966. It entered into force in 1976 and by 1 December 2007 has been ratified by 117 states (ICESCR).

¹⁴ Ibid.

must be in the form of good quality and in accessible form in addition to these the physicians must be obey the professional ethics¹⁵.

2.2 The right to health under International human right law

For this thesis I prefer to use, International Convention on Economic, Social and Cultural Right because under article 2 sub 1 of International Convention on Economic and Cultural Right state that, it impose obligation on states to fulfil the right to health in addition to these other international instrument like UDHR recognize the right to health as right but it doesn't have a binding effect on the nations but it is acceptable as International custom. Plus ICESCR has a binding effect on the states. Thus the right to highest attainable standard of health is a human right recognised in ICESCR. The international Covenant on economic, social and cultural right, widely considered as the central instrument of protection for the right to health.

International covenant on economic, social and cultural right

Article 12

1. The States Parties to the present Covenant recognize the right of everyone to the enjoyment of the highest attainable standard of physical and mental health.
2. The steps to be taken by the States Parties to the present Covenant to achieve the full realization of this right shall include those necessary for:
 - (a) The provision for the reduction of the stillbirth-rate and of infant mortality and for the healthy development of the child;
 - (b) The improvement of all aspects of environmental and industrial hygiene;
 - (c) The prevention, treatment and control of epidemic, endemic, occupational and other diseases;
 - (d) The creation of conditions which would assure to all medical service and medical attention in the event of sickness

The whole message of article 12 of International Convention on Economic, Social and Cultural right state that, everyone has the right to enjoy the highest attainable standard of health which means it is protected right and also states have the duty to takes different

¹⁵Ibid.

measures to fully realization of these right by citizens like by giving protection, by creating awareness or through promotion and include or by drafting legislation which give protection to these rights but these established legislation and the actions which took by states are must be suitable to assure all medical services, to improvement of all aspects of environmental and industrial hygiene to prevention, treatment and control of epidemic, endemic, occupational and other disease.

Subsequent international and regional human right instrument address the right to health in various ways some are of in general applicable form while others address to specific groups. Such as rights of person with disability, child right women are right and so on. Among these international treaties which recognizes the right to health.

2.3The right to health in regional law

There are different regional laws which incorporate the right to health under their laws but under this thesis try to see only African charter on human and people's right.

Article 16 of African charter on human and people's right state that as follow;

1, every individual shall have the right to enjoy the best attainable state of physical and mental health.

2, state parties to present charter shall take the necessary measures to protect the health of their people and to ensure that they receive medical attention when they are sick.

The recognition which is given to the right to health under African Charter on Human and Peoples Right more or less similar to the definition which is given by international agreements(UDHR and ICESCR) to the right to heath.

The way the African Commission on Human and People's; Right defined the right to health also shows that is not only health care, but also include different aspects of the right to health¹⁶. African Charter on Human and People's Right recognizing accesses to needed medicines for treatment, prevention and palliative care is a necessary condition for leading a healthy and dignified life¹⁷. And it impose obligation on states to provide essential medicines for its citizens¹⁸.

¹⁶HEYNS AND KILLANDER, compendium of key Human Rights of the African Union, (fifth edition, 2013).

¹⁷ Africa commission on human and peoples' rights, resolution on access to health and need medicines in Africa (2008) ACHPR.

¹⁸Ibid.

To sum up, the right to health under African charter on human and people's right defined in good manner or acquire recognition and these right impose positive obligations on states.

2.4 The right to health and duties ~~FDRE government in~~ under the FDRE Constitution

Art.41 of the FDRE constitution provides for economic, social and cultural rights .title of this article is not in the form of specific name rather it is in general form. However the use of general terms and the incorporation of some indicative list could help for the inclusion of unlisted right that have been recognized in treaties ratified by Ethiopia like that of the ICESCR. for example article 41(4),which contain the following phrase ‘.....to provide to the public health, education and other social services’ ‘this is an open provision which allow for the inclusion of other rights which are not clearly included in this article for example the right to health and accesses to medicines is not included in this provisions but we can include It in socio, economic and cultural rights because article 13(2)of the FDRE Constitution provides that the interpretation of the rights and freedoms ,including that of socio, economic rights should be in line with the ratified international human right instruments¹⁹. And also this article impose obligation on states to allocate its ever increasing resource for their realization²⁰. This does not relive the states from fulfilling its minimum core obligation required under the ICESCR.

2.5 Justifications for and Critiques of the Human Right to Health

Here under discussed are discourses which support and against the right to Health. The first, published by a human rights scholar before international Experts and national courts began to focus intensively on the subject, offer Foundational arguments concerning the scope of the right. The second Article is a more recent critique of the right to health by the President of the Open Society Institute and the former Executive Director of Human Rights watch.

2.5.1 Argument for the right to health

On first hearing it, the phrase “right to health” raise many questions among this questions it impose obligations on government or international organizations or individuals mustguarantee a person's good health. This interpretation is obviously absurd or unfair²¹. . . .

¹⁹ The constitution of Federal democratic republic of Ethiopia,1995 art.13.

²⁰Ibid.

²¹ Virginia Leary, the right to health in international human right law ,health and human rights, (1994)p.25,28,35-40 .

The term “right to health” is currently used in the context of human rights as short-hand, referring to the more detailed language contained in international treaties and to fundamental human rights principles.

The concept of a right to health as a human right emphasizes social and ethical aspects of health care and health status, as these aspects are embodied in principles underlying all international human rights²². With that in mind, a rights-based perspective on health is developed in this section by focusing on the following

Elements of all rights and applying them to health status issues:

The concept of a right to health as a human right emphasizes social and ethical aspects of health care and health status, as these aspects are embodied in principles underlying all international human rights. With that in mind, a rights-based perspective on health is developed in this section by focusing on the following elements of all rights and applying them to health status issue

- (1) Conceptualizing something as a right emphasizes its exceptional importance as a social or public goal. (Rights as “trumps.”)
- (2) Rights concepts focus on the dignity of persons.
- (3) Equality or non-discrimination is a fundamental principle of human rights.
- (4) Participation of individuals and groups in issues affecting them is an essential aspect of human rights.
- (5) The concept of rights implies entitlement.
- (6) Rights are interdependent.
- (7) Rights are almost never absolute and may be limited, but such limitations should be subject to strict scrutiny.

According to Ronald Dworkin puts it, categorizing something as a right means that the right “trumps” many other claims or goods. A special importance, status, priority, is implied in categorizing something as a right. Therefore, the use of rights language in connection with health issues emphasizes the importance of health care and health status. To speak of a right to

²²Ibid.

health does not mean that that right should always take priority over all other goods, claims, or other rights; but it does emphasize that health issues are of special importance given the impact of health on the life and survival of individuals. . . . Human Rights and Intellectual Property Conceptualizing health status in terms of rights under-scores health as a social good and not solely a medical, technical, or economic problem²³.

In the language of the Preamble to the Universal Declaration of Human Rights, “recognition of the inherent dignity and of the equal and inalienable rights of all members of the human family is the foundation of freedom, Justice and peace in the world.” The concept of rights grows out of a perception of the inherent dignity of every human being. Thus, use of rights language in connection with health emphasizes that the dignity of each person must be central in all aspects of health, including health care, medical experimentation, and limitations on freedom in the name of health. The focus must be on the dignity of the individual rather than the good of the collectively. The utilitarian principle is rejected by a rights approach. The greater good of the greater number may not override individual dignity²⁴.

Equality or non-discrimination is a fundamental principle of human rights law. . . . The rights approach, with its emphasis on non-discrimination (including on the grounds of limited economic resources) implies rejection of a solely market-based approach to the social good of health care and health status. Cost-containment and cost-benefit analyses in the health care allocation remain important but need not be determinative in matters of social goals relating to health²⁵.

Participation of individuals and groups in matters that affect them is essential to the protection of all human rights. Democracy and human rights. The Human Right to Health is frequently linked in current rights discourse – and democracy means more than merely voting: it requires provision of information and informed participation²⁶.

The concept of a right implies entitlement to the subject of that right. The recognition of the right to health as an internationally guaranteed right. That gives legal and political legitimacy to the claims for its enjoyment. This does not necessarily imply resort to lawsuits, which may not always be the best means of asserting rights. Indeed, in some legal systems, social rights are considered non-justiciable. Other measures may be resorted to, such

²³ Virginia Leary, the right to health in international human right law, 1994.

²⁴ Ibid.

²⁵ Ibid.

²⁶ Ibid.

as administrative agencies or tribunals or creation of the role of ombudsmen to respond to citizens' complaints²⁷.

Human rights are interdependent. That is, particular rights may depend on other rights for their fulfilment. Therefore, the right to health cannot be effectively protected without respect for other recognized rights²⁸. This includes, in particular, both prohibition of discrimination, and the right of persons to participate in decisions affecting them.

Rights are generally not absolute in national or international legal systems and may be subject to limitations on certain grounds. Protection of public health is one of the accepted grounds for which limitations are permitted in the International Covenant on Civil and Political Rights and in other human rights instruments. Under the Covenant, protection of public health is a permissible ground for limiting the rights to liberty of movement, freedom of religion, freedom of expression and the right to freedom of association. . . . Limitations on rights must be scrutinized to determine whether they are truly necessary. Under international human rights law, national decisions to rights may be over-seen by international monitoring committees, which can require states to provide adequate justifications for rights limitations²⁹.

2.5.2 Critics against the right to health

According to Aryeh Neier to implement or to enforce socio-economic right is very difficult because this rights are different in different place as well as a people has different want on socio-economic rights and also this rights are unlike civil and political right which mean civil and political rights are the same in everywhere. Thus to enforce this right only by assertion is very difficult rather rights are contract between government and citizens so to enforce this right the only means is negotiation between government and citizens³⁰. A citizen has to be able to enforce her side of that contract. Rights only have meaning if it is possible to enforce them³¹. But there has to be some mechanism for that enforcement, and adjudication seems to be the mechanism that we have chosen. If we talk about meaningful right, one has to discuss what can be enforced through judicial process³².

²⁷Ibid.

²⁸Ibid.

²⁹ ibid

³⁰ Aryeh neier ,*social and economic rights; a critiques* ,13/2 human rights ,(2006) p.1-3.

³¹Ibid.

³²Ibid.

economic and social rights is when there are broad assertions of the sort that appear in the Universal Declaration of Human Rights we get into territory that is unmanageable through the judicial process and that intrudes fundamentally into an area where the democratic process ought to prevail³³.

Economic and security matters ought to be questions of public debate. To withdraw either of them from the democratic process is to carve the heart out of that process. Everybody has an opinion on what should be done to protect the public's safety, and everybody has a view as to what is appropriate in the allocation of a society's resources and its economic burdens³⁴.

The question of health care, one person needs a kidney transplant to save her life, another needs a heart-bypass operation, and still another needs life-long anti-retroviral therapy. All of these are life-saving measures, but they are expensive. Then there is the concern about primary health care for everyone. Not everybody can have everything. There have to be certain decisions and choices that are made when one comes to the question of benefits, and a court is not the place where it is possible to engage in that sort of negotiation and compromise³⁵. It is not the place where different individuals come forward and declare their interests³⁶ and what they are willing to sacrifice for those interests. That is the heart of the political process; only the political process can handle those questions.

2.6 The nature of state obligation regarding socio- economic right (the right to health)

Socio economic rights have explicit recognition in different international human right instruments like the UDHR, CEDAW, CRC and most importantly ICESCR, as well as regional human right instruments such as the ACHPR, European social charter and American convention on human right.

There are a lot of debates raised in different time because of justifiability of socio-economic rights emanate from the nature of state obligation. Article 2(1) of the ICESCR impose different kinds of obligations on states thus tries to address the nature of state obligation regarding socio-economic right under the ICESCR.

³³Ibid.

³⁴Ibid.

³⁵Ibid.

³⁶Ibid.

2.6.1 Obligations to respect, protect, promote and fulfil

The CESCR has classified the different levels of state obligations by stating that every socio-economic right, as with every human right, includes duties to respect, duties to protect, duties to promote and duties to fulfil³⁷. This interpretation of states obligation has also been reflected in the Maastricht guidelines on violation of economic, social and cultural rights.

Obligation to respect requires refraining from interfering with the enjoyment of the rights. it focus on preventing the states from unduly intervening in the enjoyment of a particular freedom or entitlement³⁸. To prevent the interference the state may still have to take proactive measures.

Under the duty to protect, states required to preventing third parties from unduly interfering in the right holder's enjoyment of a particular freedom and entitlement³⁹.

Obligation to promote deals with raising awareness as to the right and procedures for asserting and protecting the right. For example through human right education, creating and publicizing opportunities for participation, and capacity building to enable meaningful participation⁴⁰.

The last obligation, obligation to fulfil requires states to take appropriate measures towards the full realization of the right .that is, the obligation to fulfil socio economic right relates closely to the duty of states to devote the maximum of its available resource towards the progressive realization of the rights established under article 2(1) of the ICESCR. This duty emphasizes that a comprehensive set of interventionary measures requires action by states, including those relating to legislation, administration, budget and the judiciary⁴¹.

To sum up all the obligation which are discussed above are applied on the right to health through logical interpretation. Therefore states are under the duty to fulfil, respect, protect and to promote the right to health.

³⁷ Malcolm Longford and Jeff A. King, "Committee on Economic, Social and Cultural Rights: Past, Present and Future," in Malcolm Longford, *Social Rights Jurisprudence: Emerging Trends in International and Comparative Law* (2008), p. 484.

³⁸ International Commission of Jurists, "Courts and the Legal Enforcement of Economic, Social and Cultural Rights: Comparative Experience of Justifiability," *Human Rights and Rule of Law* (Series, No.2 2008)(hereinafter ICJ).

³⁹ Ibid.

⁴⁰ Clarence J. Dias, *Towards Effective Monitoring of Compliance with Obligation and Progressive Realization of Economic, social and cultural right*. Feb.2004.

⁴¹ Idowu Mopelola Ajibade, *Promoting Economic, Social and Cultural Rights: A Critical Step to Achieving Human Security in Nigeria* (June 2006).

2.7 Patents right

A patent right, like other intellectual property rights, entitles the right holder to exclude third parties from exploiting the invention without the right holders consent for limited period of time up on the complementation of the patent requirement. A patent is a powerful right with important implication on issues affecting public interests such as accesses to essential medicines, accesses to information and accesses or availability and affordability of goods and services. In view of this the question arise as why governments grant such a legal monopoly but in the following discussion the question which raised here may be solve,

2.7.1 Definition of patent

The term patent has got definition by different legal system among them the European patent office has defined patent as:

“a legal title granting its holder the exclusive right to make use of invention for a limited area and time by stopping others, among other things, making, using or selling it without authorization”⁴²

Black's law dictionary also defined the term patent as:

“the government grant of right, privilege or authority, the official document so granting also termed public grant and the right to exclude others from making, using, marketing, selling offering for sale, or importuning an invention for a specified period twenty years from the date of filing granted by the federal government to the inventor if the device or the process is novel, useful and non-obvious”⁴³

The main constituent of the above definition have similarity without wording difference. Both of them express patent is a legal document which grant the patentee and exclude others from using, selling it.

The definition of patent under Ethiopian law unlike the definition given by the European patent office and Black's law dictionary, our patent law, under proclamation Number 123/1995, provides a very general definition of patent. According to Art.2 Sub.Art.5 of the inventions, minor inventions and industrial design proclamation No.123/1995, Patent means the title granted to protect inventions; the inventions may relate to a product or a process.

⁴² Addis legesse, patent and biotechnological invention (1995)/p.6.

⁴³ Bryan A.garner, "black's law dictionery"(u.s.a;west publishing co.)2004.p.1156.

From the above definition, it would be very difficult to ascertain the rights that the patent confers on the inventor or the owner of the patent. It does not even state that patent guarantees exclusive right to use, make or otherwise exploit in a manner that the patent owner wishes.

2.7.2 Significance of patents

A person who has been granted a patent has a possibility to get reward which is an incentive for inventors for the cost they incurred during the inventing process and to create new researches in different areas of technology one and then⁴⁴.

In addition to the above for the future development and commercializing the invention, the patent system will encourage the inventor to use additional capacity, in return for this the patentee have an exclusive right to use, make, sale the patented invention without any interference⁴⁵.

Moreover the existence of legal protection initiates the patentee to disclose technological information early to the public. However, the exemption of the invention from the protection may make the patentee refrain from disclosure. These prior disclosures of invention reduce the likelihood of having couple of inventions, which are substantially the same and duplication effort by others. Furthermore, it provides to the public a means for the solution of their problem⁴⁶.

Finally the protection of patent right internationally promote the beneficiary exchange of products, services and technological information across national boundaries by providing protection for industrial property of foreign nationals⁴⁷.

This function is especially important for developing countries in which the activities of inventions are slow compared with developed nations. the importance of patents through transfer of technology has got especial consideration in these developing countries, according to yankey: “it is the belief (the belief to acquire foreign technology through patents) that seems to influence the continuous participation of developing countries in the international patent system. as long as countries existed in the south are technologically

⁴⁴ Adamu gashu, the need for patent system in Ethiopia, (1994), p.4.

⁴⁵ Ibid.

⁴⁶ Ibid.

⁴⁷ Ibid.

backward ,they expect patents to serve as a vehicle in the transfer of technologies from north to the south.⁴⁸”

Even if the developing countries are interested to import inventions from developed nation; after the coming of invention to their home land; there are many challenges faced to them among the obstacles:-

First there may be an obstacle of inadequate disclosure of inventions; inventors in the developed nation are very likely to withhold very important elements their inventions. In addition to the above the patent examiner offices that existed in south are not well organized with sufficient materials for the examination purpose as result the offices could not serve as patent information centres. There is also acute lack of personnel to administer patent .Furthermore there is no trained technical man who has power to observe foreign technologies effectively⁴⁹.

To sum up patent have important purpose to the patentee for his/her intellectual effort by awarding economic benefits and the public are also users from the invention by solving the existed societal problem.

2.7.3 Requirements for patent protection

Patent protections are available for any process, machine, manufacture, or composition of matter or any useful improvements thereof. A process is a mode of treatment of certain materials to produce a given result. On the other hand machines, manufactures and compositions of matter are generally easy to recognize they are things such as steam engines, pencils and aspirins⁵⁰.

Generally a potential patentee must be prepared to demonstrate that s/he has developed a new, useful and non-obvious processor product, which is made by means of patent application. So, let us see these requirements one by one in precise manner:

Novelty

Novelty is one of the basic and universally recognized conditions of patent ability. According to this requirement an invention shall be considered to be new if it not comprised in the prior

⁴⁸ Ibid p.6.

⁴⁹ Ibid.

⁵⁰ Rochelle cooper dreyfuss, and Roberta, rosenhtal, "intellectual property trade mark, copy right and patent law"(new work: the foundation press, inc) 1996 p.734.

invention. Novelty is therefore the comparison between the latter invention and the existing prior art at the date of filing. The rationale behind this requirement is that anything that is already disclosed to the public should not be publicized for a second time⁵¹

The novelty requirement is contained in art.27/1 of TRIPS agreement that states:

“subject to paragraph 2 and 3, patent shall be available for any inventions, whether products or process, in all fields of technology, provided that they are new, involve an inventive step and are capable of industrial application.”

Non-obvious

The second requirement for patent ability is called non-obvious. It is in principle widely recognised throughout different patent systems. An invention is considered to involve an inventive step or non-obviousness if it is not obvious to a person skilled in art or if it would not have been obvious to a person having ordinary skill in the art having regard to prior art⁵².

Industrial applicability

The third requirement for patent ability is industrial applicability or utility in certain countries. Its objective is to exclude from patent ability inventions, which have no utility in any field of industry, which do not achieve the objectives, claimed by the invention or which may use only for private purpose. The utility orientedness of the invention is a crucial criteria which implies that the practical application of the invented product or process industrially such as in handicraft, agriculture, fishery and social services is necessary to get patent right⁵³.

2.8 The right to patent under the Ethiopian patent law proclamation no 123/1995 (patentable and non-patentable)

Invention in Ethiopia patent proclamation no.123/1995 classified into two, namely patentable and non-patentable

According to article 3(1) of proclamation no 123/1995

⁵¹ The hon sir peter millet, "the encyclopedia of forms and precedents." (London: fifth edition. Butterworth's and co publishers), 1991, p.277.

⁵² Ibid.

⁵³ The hon, sir peter millet, "the encyclopedia of forms and precedents" (London: fifth edition, Butterworth's and co publishers) 1991 p.277.

1. An invention is patentable if it is new, involves an inventive step and is industrially applicable.

From the above article we understand that an invention is patentable if it is new which means is not disclosed in prior art in everywhere, it must take an involve inventive step which mean it is not clear to ordinary person and is industrially applicable it mean it has some contribution to industrial applicability.

As long as the inventor has not come with invention which involves the above requirements s/he can't retain legal protection.in addition to the above there are also inventions,which are clearly excluded from patent right for different reasons. Article 4 of the above proclamation enumerates subject matters,which can't be monopolized by the proprietor of them.

Inventions against public order or morality

Art 4/1/a prohibits patent protection to those inventions which have implication of disturbing peace of society and well-accepted norms or morality. The concept of public order covers the protection of public security and physical integrity of individuals as part of society. The concept of public morality is differing from place to place but the societies determine whether a given action is right or wrong. Similarly TRIPS agreement art 27(2) also put measurement of morality that is when the commercial exploitation negatively affects the society including risk creation to human and animal life, patent could not be granted.

Biotechnology

Biotechnology is one part of technology which can make the manipulation of the core of all living materials the genetic structure and the natural behaviour of living materials can be changed by using this method. Thus according to article 4(1)b) of Ethiopian patent law prohibit protection for plant and animal varieties and essentially biological process for the production of plant or animal.

The remaining exception under article 4/1/d-e of the proclamations are discussed here as they are not directly related to central theme of the thesis. I will therefore jump to readers to read it by own yourself.

2.9 The Right to Patent in under TRIPS Agreement

In international trade, the proportion of goods and services consisting of intellectual property has increased dramatically, and if the intellectual property protection offered by countries is inadequate or inappropriate, there is a danger of distorting the international trade order. However, in developing countries, although systems existed for the protection of intellectual property, there were many countries where the standard of protection was inadequate, for example the extent of protection was limited or the period of protection was extremely short, or enforcement of intellectual property rights could not be guaranteed to be sufficiently effective. Even among developed nations, there were some countries with systems that gave too much protection to intellectual property or discriminated between internal and external sources.

For these reasons, from the perspective of improving the international trade order, there was increasing recognition of the necessity to develop a framework to ensure appropriate protection of intellectual property. In the intellectual property field there already existed a number of agreements for the international protection of intellectual property, such as the Paris Convention related to industrial property rights including patents and trademarks, and the Berne Convention concerning copyright. However, with more emphasis being placed on the trade-related aspects of intellectual property, it was seen as an urgent task to attain international agreement in the context of GATT, with as many nations as possible participating, concerning standards of protection of intellectual property associated with trade.

The negotiations concerning Trade-Related Aspects of Intellectual Property Rights (TRIPS) became one of the important new areas for discussion at the Uruguay Round of GATT, begun in 1986. Along with other agreements to come out of the Uruguay Round, the Agreement on Trade-Related Aspects of Intellectual Property Rights (the TRIPS Agreement) was finally agreed upon at the ministerial meeting in Marrakesh, Morocco in April 1994, and came into force as part of the WTO Agreement on January 1, 1995.

The main reason to prefer TRIPS agreement for this thesis is it comprehensive agreement w compared to other agreements.

According to Article 27 of TRIPS Agreement provide that “patents shall be available for any inventions, whether products or processes, in all fields of technology.” because of this article pharmaceutical processes entitle patent protection.

Article 28 of TRIPS agreement

Rights conferred

1, a patent shall confer on its owner the following exclusive right

A, where the subject matter of a patent is product, to prevent third parties not having the owner's consent from the acts of: making, using, offering for selling, selling or importing for these purpose that product:

B, Where the subject matter of the patent is a processes, to prevent third parties not having the owner's consent from the acts of: using the processes, and from the act of using, offering for selling, selling, or importing for these purpose at least the product obtained directly by that processes.

2, patent owners shall also have the right to assign, or transfer by succession, the patent to concluded licensing contract.

From article 28 of sub art 1(b) of TRIPS agreement we understand that it gives patent protection to matter of the patent is process. Pharmaceutical patent is included under this category of protection. which mean a patentee have exclusive right on patented process like s/he can assign his or her right to third parties as well as s/he can exclude others from using, selling and offering it for selling.

Art.33 Terms of protection

The term of protection available shall not end before the expiration of a period of twenty years counted from the filling date.

Which mean no one interfere before the expired of these date but these right is not absolute sometimes it may be violated for sack of public matter like to prevent epidemic and endemic diseases. The time which is put here is minimum time.

2.10 Legal justification for the protection of patent

The inventor of incorporeal properties has personal right on the invented process or product. To realize this right different legal system gives patent right to the patentee that is a guarantee for his/her intellectual effort.

The justifications are:

2.11 Economic reason

According to this theory when the inventor invents a process or a product they are expected to invest their time, knowledge, work and risk of capital: so for the cost they paid they have to be rewarded⁵⁴.

Patents may be given to physical person or legal person. Mostly they are given to corporate organization, so the cost which can be non-proportionally large in comparison with the cost of manufacturing, will be incurred only by companies and organizations that can foresee a profitable return on them, and the only way this can be guaranteed is to secure some form of legal protection. In addition to the above if there was protection the other a manufacturer would not have the considerable advantage of selling the product invented by the prior individual without having to pay any of the cost involved⁵⁵.

If patentee were not rewarded, their investments increasing works as well as disseminating them to the public would not be undertaken. The non-existence of legal protection of patent might lead the inventor to prefer to keep their inventions secret. Awarding patents generally makes the detail of new technology publicly available, for exploitation by any one after the patent expires, or further improvement by other inventor⁵⁶.

There are some critics posed against this theory, some argued that this theory denies absolute right of inventors to their productivity: because after expiry of limited period of time which may be twenty years anyone will be free to put the invention into use. Besides the inventor is expected to accept the government bargains that are the price conditions be determined by the involvement of government⁵⁷.

⁵⁴ David Brain, Intellectual Property (third edition 1993) p.322.

⁵⁵ Ibid, p.323.

⁵⁶ <http://WWW.bereski.com/English/publications/art.htm1/patent-co-own-nador-htm1> accessed on November 25 at 3:45 p.m.

⁵⁷ Arthur R. Miller and Michael H. Davis, "Patents, Trade Mark and Copy Right in Nutshell" U.S.A third edition 2011

2.12 Moral reason

The supporter of this theory proposed that the product of mental labour is by right the property of the person who created it. so creators have a bond of mother and child relationship with their invention. They will have all the title upon a process, the product and composition of matter invented by them. The government assures the inventor an exclusive right to profit from the invention in order to obtain disclosure and thus allow for other latter inventors to build up on early creation.⁵⁸

The critics against this theory is that moral reason is inconsistent with the idea of a limited monopoly because if inventors have complete right upon inventions, it is not clear how the government can declare the invention public property after the after expires⁵⁹.

2.13 Absolute monopoly

inventors have an exclusive or absolute monopoly right on his /her inventions to use, sell the product or process by excluding others up to the expiry date of a patent right. According to aldousJ jurisdiction for the patent system protection:

“.....it is generally accepted that the opportunity of acquiring monopoly rights in the inventions stimulate technical progression at list in four ways; first it encourages research and invention, secondary it induce an inventor to disclose his/her invention instead of keeping them secret ,thirdly it offers reward for the expense of developing inventions to the state at which they are commercially practical and, fourthly it provides an inducement to invest capital in new lines of production which may not appear profitable, if money computing procedures embarked on the simultaneous ...⁶⁰”

From the above justification we can understand that the existence of monopoly power by inventors will make the public beneficiary because since the inventors shall go a reward from a limited time they can make public their inventions. Thebody of knowledge available to public can used for the solution of problems and improve technological capacity of nations.

⁵⁸Ibid.

⁵⁹Ibid.

⁶⁰ David brian “intellectual propert”(London third edition 1993) p.359.

The critics against this theory are that the existence of monopoly right for the patentee creates inefficiency in the marketing system of the state. The patent system may stifle completions in the market that they result for the production of products that have lower quality, shortage of products and imposition of higher prices⁶¹.

The second critics proposed is that patent confers “negative right” upon a patent owners, which permits to them for the exclusion of competitors from using or exploiting the inventions even if the competitors subsequently develops the same invention independently after the priority date of the first invention⁶².

Generally the right to health is recognized under article 12 of ICESCR which include the right to access medicines while pharmaceutical products entitle patent protection from TRIPS agreement under article 27. the person who entitle patent protection for his inventions has the following right under article 28 of TRIPS agreement, he can exclude others from using, selling, making it and so on.

⁶¹<http://WWW.berskinparr.co/English/publication/art.htm/patent-co-own-nador-hm1> accessed on nov.25 at 3:45.

⁶²Ibid.

CHAPTER THREE

3. DOES THE RIGHT TO HEALTH AND THE RIGHT TO PATENT CO –EXIST OR CONFLICT

This chapter will address the of question,whether the right to health and pharmaceutical patent conflict or co-exist from the perspective of accesses to patented medicines. There are two distinct conceptual approaches with respect to intellectual property and human right(the right to health and the right to patent especially pharmaceutical patent);the conflict and the co–existence approach⁶³. Some find that IPRS and human right are in fundamental conflict with each other. The main reason for this group, the strong IP protection as undermining a range of human right obligation, especially with respect social-economic rights⁶⁴. The United Nations (UN) sub-commission on the protection and promotion of human right stated that ‘there are apparent conflict between the intellectual property right regime embodied in the TRIPS agreement, on the one hand, and international human right law on the other⁶⁵. ‘In the case of accesses to medicines,patent protection for pharmaceutical products is seen to undermine the right to health and the right to life. Supporter of this approach argue that to resolve such conflict the normative primacy of human right law over IP law must be recognised in situations where treaty obligations conflicts⁶⁶. While other disagree and consider human right and IPRS to be essentially compatible .they see ‘both areas of laws as concerned with the same fundamental question: defining the appropriate scope of private monopoly power that gives the author and inventor sufficient incentives to create and innovate, while ensuring that the consuming public has adequate accesses to the fruits of their efforts⁶⁷.

In the light of the question posted in this thesis or research, is does the right to health and patent right(pharmaceutical patent) co-exist or conflict? Before answering this question we shall have to define the word conflict:

⁶³Helfer, Laurence R.,and Austine,Graeme W.,human right and intellectual property: mapping the global interface (2011),p.47-48.

⁶⁴Ibid (2011),p.48.

⁶⁵UN sub-commission on the promotion and protection of human rights,resolution 200/7.intellectual property rights and human right ;un doc.E/CN.4/SUB.2/RES/2000/7,para.2.

⁶⁶Ibid.

⁶⁷Super note 64, p.48.

International law commission (ILC) rose the question of what is a conflict⁶⁸.It found that conflict could be interpreted strictly and more widely. A strict definition of conflict presumes “that conflict exist if it is possible for a party to two treaties to comply with one rule only by thereby failing to comply with another rule.”⁶⁹”In simple term conflict mean, the situation where two rules or the principle suggested different ways of dealing with the problem⁷⁰.

The International Court of Justice (ICJ) has rarely addressed the issues what constitute a conflict of norms in international law, yet in the jurisdictional immunities’ of the state case the court did state that there could be no conflict when two norms regulate different matters⁷¹.Therefore, it must first be assessed whether the allegedly conflicting norms address the same subject matter.in addition to both applying to a state party at the same time⁷².So now we can discuss on the question what is raised in the above:

Art.12 (1)of international convention on economic, social and cultural right recognizes the right to health as follow;

1, the states parties to the present covenant recognize the right of everyone to the enjoyment of the highest attainable standard of physical and mental health.

The recognition which is given to the right to health under art.12(1)of ICESCR is not in precise manner rather it is in ambiguous term which mean is not define what do mean the highest attainable standard of physical and mental health thus a lot of controversies raised in different times because of lack clarity meaning of art.12(1

While Article 27of TRIPS agreement provide that “patents shall be available for any inventions, whether products or processes, in all fields of technology.” because of this article pharmaceutical processes entitle patent protection. And under article 28 it confer the patentee the following rights;

1, a patent shall confer on its owner the following exclusive right

⁶⁸International law commission(2006)para.18.

⁶⁹Ibid,para.24.

⁷⁰International law commission (2006) para.25.

⁷¹International court of justice ,international immunities of the state (Germany vs. Italy: Greece intervening),judgment of 3 February 2012, ICJ reports 2012,p.99,para.93.

⁷²Ibid.

A, where the subject matter of a patent is product, to prevent third parties not having the owner's consent from the acts of: making, using, offering for selling, selling or importing for these purpose that product:

B, Where the subject matter of the patent is a processes ,to prevent third parties not having the owner's consent from the acts of: using the processes, and from the act of using ,offering for selling ,selling, or importing for these purpose at least the product obtained directly by that processes.

2, patent owners shall also have the right to assign, or transfer by succession, the patent to concluded licensing contract.

Article 12(1) of ICESCR recognizes that everyone has the right to enjoyment of highest attainable standard of physical and mental health. Which mean it recognizes the right to health but the problem is on the meaning of highest attainable standard of physical and mental health? Thus united nation special rapporteur on the right to health has explained that ‘‘accesses to medicines forms an indispensable part of the right to highest attainable standard of health⁷³’ ’and the right to health mandates that states promote ‘‘the realization of the right to medicines for all⁷⁴;

Urges states to guarantee the full scope of access to needed medicines, including:

- The availability in sufficient quality of needed medicines, including existing medicines and the development of new medicines needed for the highest attainable level of health;
- Accessibility of needed medicines to every one without discrimination, including
- Physical accessibility of needed medicines to all
- Economic accessibility or affordability of needed medicines to all

Calling the states to fulfil their duties with respect to access to medicines, in particular:

- Implementing intellectual property polices that do not take full advantage of flexibilities in the WTO agreement on trade related aspect of intellectual property that promote accesses to affordable medicines ,including enter in to TRIPS plus agreements

⁷³Council of economic ,social and cultural right General Comment No. 14: The Right to the Highest Attainable Standard of Health (Art. 12) on 11 august 200.

⁷⁴Ibid.

- Prevent unreasonable medicines price for needed medicines in both the public and private sectors ,through promotion of equity pricing in which the poor are not required to pay a disproportionate amount of their income for accesses,
- And so on

Therefor from the above discussion which means the definition of the right to health given by special rapporteur on the right to health, we understand that the right to health include accesses to essential medicines.

3.1Pharmaceutical patent is under the protection of TRIPS Agreement.

Article 27 of TRIPS agreement state that “patent shall be available for any inventions, whether products or processes, in all fields of technology.” because of this article pharmaceutical processes entitle patent protection. Which mean the patentee has exclusive right on his invention according to article 28 of TRIPS Agreement.in simple terms/he can exclude others from using, selling and importing to selling the invention as well as they can transfer and assign their right to third parties these right is for 20 years(minimum) according to article 33 of TRIPS agreement.in addition to these minimum standards of ,the TRIPS agreement provide a degree of flexibility for members to balance patent protection with other public interest ,including public health and accesses to medicines. Firstly, the object and the purpose of TRIPS agreement is found in its preamble and art.7 and 8 does not limit itself to the protection of IPRS but recognises the necessity to find a balance between the promotion of technology innovation and the transfer and the dissemination of such technology .this reflected in the wording of article 27 of trips which was one of the main proposal made by developing countries during the negotiation and read as follow:

“The protection and enforcement of intellectual property rights should contribute to the promotion of technological innovation and to the transfer and dissemination of technology, to the mutual advantage of producers and users of technological knowledge and in a manner conducive to social and economic welfare, and to a balance of rights and obligations”

3.2Flexibility of TRIPS Agreement

Article 8 sub 1 of TRIPS is formulated more strongly in that it states that” members may adopt measures necessary to protect public health, provided that such measures are consistent with the provision of this agreement”

Having set out international frame work with respect to the right to health and patent right (pharmaceutical patent) the questions arises whether in this context the right to health and patent right (pharmaceutical patent) co-exist or conflict. The answer is depending on the definition which is given to the conflict. According to ILC conflict mean 'that conflict exist if it is possible for a party to two treaties to comply with one rule only by thereby failing to comply with another rule. '' In simple term conflict mean, the situation where two rules or the principle suggested different ways of dealing with the problem. And also a definition to conflict which is given by ICJ there could be no conflict when two norms regulate different matters. According to this definition there is no conflict between the right to health (ICESCR) and pharmaceutical patent (TRIPS agreement) because the object and the purpose of both rights (treaties) are different. Simply the right to health is the branch of human right or it include under international convention on economic, social and cultural right in other word it deal or focus on human right and human dignity. While pharmaceutical patent (TRIPS agreement) deal or focus on striking a balance accesses and protection with the frame work of IPRS. Setting the two treaties in the context of their respective regimes, it is seen that the underlying values of the international trade regime and the international human right regime are distinct.

But there is tension between the right to health (ICESCR) or international human right and pharmaceutical patent (TRIPS Agreement) or international trade because of the following grounds;

- ✓ There is a clear difference between the enforcement of TRIPS and international human right law. the TRIPS falls under the WTO law dispute settlement mechanisms and if a WTO members is found to be in violation of its obligations the dispute settlement body may ,as the last resort ,authorise the complainant to withdraw trade or other concessions against the violator⁷⁵.
- ✓ The ICESCR, on the other hand, does not have a very effective enforcement mechanism and even though human rights are consider to be morally superior; the lack of enforcement gives them a weaker position compared to WTO rules⁷⁶.
- ✓ The WTO dispute settlement mechanism has not yet addressed the impact of human rights on the interpretation of TRIPS.

⁷⁵ Article 22 DSU.

⁷⁶ Article 3,2 DSU ; WTO appellate body report ,Mexico tax-measures o soft drinks and beverages ,adopted 24 march 2006.

There are a number of ways in which such tension can be dealt with; the one way in order to avoid tensions between obligations is through treaty interpretation⁷⁷.in this way one interprets one norm in the light of another norm in order to avoid conflict. If the conflict is not solved through interpretation in that case .a conflict must be resolved through a series of conflict resolution techniques, such as the *lex superior derogate legi inferior* (a superior norm prevail over inferior norm), *lex posterior derogate legi priori* (a latter expression of state prevail over an earlier expression), and *lex specialis derogate legi generali*(a special norm prevail over general norm. the simplest ways to resolve the tension between the right to health and pharmaceutical patent is *lex superior derogate legi priori* (the superior nor prevail over inferior norm) rule apply.

To sum up, there is no conflict between the right to health and pharmaceutical patent rather there is tension between the right to health and the right to health because of the grounds listed here above and these tensions resolved by different ways which are listed here above.

⁷⁷Hestermeyer (2007),p.170

CHAPTER FOUR

RECOMMENDATION AND CONCLUSION

4.1 Conclusions

~~As we knew~~ the right to health is ~~granted~~ to all human beings by virtue of humanity and this title is granted to all human beings without any discrimination. This right is ~~granted~~ in different international laws like, WHO constitution define the right to health as following a 'state of complete physical, mental and social well-being and not merely the absence of disease or infirmity' UDHR the first document after WHO which granted the right to health. Latter on ICESCR granted this right.

For the first time in a comprehensive way patent is ~~granted~~~~neted~~ ~~under-in the~~ TRIPS ~~A~~greement which means it also the first document which give patent protection to pharmaceutical patent.

TRIPS agreement gave the following right to the patentee; the patentee has the right to exclude others from using, selling and import to selling it for twenty years.

—The background and the main developments concerning the relationship between the right to health and pharmaceutical patent begin after the discovery of HIV/AIDS medicine and subsequent patent protection in the first declaration -. ~~F~~from this onward it became ~~an~~ international issue, because ~~the~~ TRIPS ~~A~~greement ~~excludes~~ others from using and ~~sal~~ing the drug for 20 years. ~~O~~on other hand, a lot of people suffered by disease as result of lack of medicines and they can't afford it easily because of the price especially a people who live in developing countries. After one year a government of ~~R~~epublic of South Africa ~~amended~~ its legislation to ~~grant~~~~net~~ the right to health. This right granted in different international, regional and national legislation -art.12, art.16 and article 41 of FDRE constitution respectively. There are different arguments which support and ~~against-oppose~~ the right to health because of its absurd definition.

The right to health is ~~granted~~~~recognized underin~~ international law but it is ~~defined~~ not in precise manner. ~~T~~hus, ~~I~~nternational ~~C~~ommission on the right to health ~~defines~~ the right to

health in it General comment no 14 of article 12. Under this General Comment, the right it includes accesses to medicines as right. While pharmaceutical patent granted .international convention on economic social and cultural right impose duties on states to fulfil this right under article 2 of the convention.

~~While the~~ The right to patent is also granted in different international, regional and national legislations. ~~F~~for example, the European Patent Office defined patent as title to limited area and for time, the holder of the right exclude others from using, selling it-. ~~In and also our Ethiopia, law define p~~atent is also defined under- Proclamation No.123/1995, as a Patent means the title granted to protect inventions; the inventions may relate to a product or a process. Make a kind of conclusion from the above discussion.

There are certain prerequisite to patent right. These are ~~these are~~ novelty, non-obviousness, and industrial applicability. ~~and also Patent these right~~ is also supported by different arguments such as economic reason, moral reason and absolute monopoly.

There are arguments ~~which stand on~~ regarding the relationship between the right to health (ICESCR) and pharmaceutical patent (TRIPS Agreement). The first group would say that there is no conflict between the right to health (~~ICESCR~~) and pharmaceutical patent (~~TRIPS~~) agreement because these two right deal about different issues. Whereas ~~the others~~ argue that there is conflict between the right to health (~~ICESCR~~) and pharmaceutical patent (~~TRIPS~~) ~~agreement~~ because the strong ~~standard~~ standard of patent protection ~~of under the~~ TRIPS Agreement is a derogation efrom the right to health-. The thus ~~I~~nternational Court of Justice ~~define stated that~~ conflict that, there could be no conflict when two norms regulate different matters ~~and also~~. The International Law Commission also define ~~asserts conflict,~~ that “a conflict exists if it is possible for a party to two treaties to comply with one rule only by thereby failing to comply with another rule.-” This which would mean that there is no conflict between the right to health ~~or ICESCR or~~ (or human right in general) and pharmaceutical patent ~~or under the~~ TRIPS Agreement, because the right to health is one parcel of human right and also is part of ICESCR as whole it deal only about human rights while pharmaceutical patent is part of TRIPS which mean it deal about trade or it is part of WTO so there is no conflict between the right to health and pharmaceutical patent because these two rights deal about different issues but there is a tension between these two rights. There are a number of ways in which such tension can be dealt with; the one way in order to avoid tensions between obligations is through treaty interpretation. If the conflict is not

solved through interpretation. ~~in that case, ita conflict~~ must be resolved through a series of conflict resolution techniques, such as the principle of lex superior derogate legi inferior (a superior norm prevails over an inferior norm), lex posterior derogate legi priori (-a latter expression of state prevails over an earlier expression), and lex specialis derogate legi generali (a special norm prevail over general norm). ~~The~~ simplest ways to resolve the tension between the right to health and pharmaceutical patent is lex superior derogate legi priori (-the superior nor prevail over inferior norm) rule apply. What does this mean then?

4.2 Recommendation

- Generic pharmaceutical competition has from its inception helped to bring down the prices of overly expensive patented medicines. A generic drug is defined by the WHO as ‘pharmaceutical product, usually intended to be interchangeable with an innovator product, that is manufactured without a licence from the innovator company and marketed after the expiry date of the patent or other exclusive rights⁷⁸’. They are usually of the same effect as the patented medicines, but are provided at a significantly lower cost.
- In all of the points raised below, clarity is lacking. Also, you need to mention whom your recommendations are addressed. For instance, are you suggesting that governments should prepare laws....or are you envisaging a multilateral instruments.
- Prepare the laws which obligate the companies to sell their product ~~by~~ cheaply or by proportional price to a person who can’t afford it.
- Government extensively subsidized researches which participate on pharmaceutical activities.
- And participate through governmental manufactures in production processes of medicines.
- Give different incentives to pharmaceutical companies to produce and to distribute a medicine in cheap price and in quality manner such as by giving tax holidays, technical support, and make accessible infrastructures to their manufactures.

⁷⁸<http://www.who.int/trade/glossary/story034/en/> (accessed on 23 April 2013).

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